

20STCV40419 20STCV40419

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Case Number: 20STCV40419 Hearing Date: September 9, 2026 Dept: 509

Marco Aiello v. 4820 Bellflower, Inc., et al.

DEFENDANTS' MOTION FOR ATTORNEY'S FEES

MOVING PARTY: Defendants CORO Community Management and Karen Kokowicz

RESPONDING PARTY(S): Plaintiff Marco Aiello

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

Plaintiff Marco Aiello (Plaintiff) owns a condominium unit in North Hollywood. Plaintiff alleges the premises suffered a sewer back-up incident causing excessive damages. Plaintiff also alleges the Association acted in bad faith by promulgating proposed rule changes harmful to Plaintiff and in violation of applicable laws. Plaintiff asserts claims against 4220 Bellflower, Inc., the association's president, and the property manager for (1) negligence, (2) violation of Davis-Stirling Common Interest Development Act, (3) Violation of CC&Rs, (4) intentional interference with contract, (5) declaratory relief, (6) intentional concealment, (7) breach of contract, and (8) breach of the implied covenant of good faith and fair dealing.

On December 12, 2025, defendants 4820 Bellflower, Inc. (4829); CORO Community Management and Consulting, LLC (CORO); Linda M. Abruzzo (Abruzzo); and Karen Kokowicz (Kokowicz, collectively Defendants) moved for summary adjudication.

On June 9, 2026, this Court ordered, among other things, that all causes of action against Kokowicz have been summarily adjudicated and ordered Kokowicz to file a proposed judgment.

On August 20, 2026, this Court granted judgment for Kokowicz against Plaintiff.

Now, Kokowicz and Coro (Moving Defendants) move for attorney's fees pursuant to Civil Code, section 5975. [FN 1] Plaintiff opposed.

TENTATIVE RULING:

Moving Defendant's Motion for Attorney's Fees and Costs is CONTINUED to September 21, 2026.

Moving Defendants may supplement its motion clarifying the fees requested on behalf of Kokowicz only. Any such supplement is due by filed and served by September 14, 2026 by 4:00 pm. Any supplemental reply thereto is due by September 17, 2026 by 4:00 pm.

DISCUSSION:

Motion for Attorney's Fees

Moving Defendants seeks an award of attorney's fees as the prevailing party. Under Civil Code section 5975(c), the prevailing party in an action to enforce a declaration of covenants and restrictions "shall be awarded reasonable attorney's fees and costs." (Civ. Code § 5975(c).) Pursuant to the judgment entered August 20, 2026, Kokowicz is expressly a prevailing party on this action, and is entitled to recover fees pursuant to section 5975(c). (8/20/2026 Judgment; see FAC ¶¶71-86.)

However, Coro is still a party to this action and is therefore not a prevailing party. (Opp. at p. 3:20-22.) The test for determining a prevailing party is "whether a party prevailed on a practical level by achieving its main litigation objectives." (Almanor v. Lakeside Villas Owners Assn. v. Carson (2016) 246 Cal.App.4th 761, 774.) Accordingly, a court must "compare the relief awarded on the... claims with the parties' demands on those same claims and their litigation objectives as disclosed by the pleadings, trial briefs, opening statements, and similar sources." (Hsu v. Abbarra (1995) 9 Cal.4th 863, 876.) Contrary to Coro's assertion, prevailing on a single cause of action does not render Coro a prevailing party, absent determination of the entire action. Therefore, Coro is not a prevailing party and is not entitled to attorney's fees.

In reply, Moving Defendants request that "the Court defer ruling on the Motion as to Coro, rather than deny the Motion." (Reply at p. 4, fn1.) However, as a practical matter, the Moving Defendants do not appear to separate the fees requested by Kokowicz independently. Instead, Moving Defendants' motion itemized fees via an equation. (See Mot. at p. 20:17-18, ["The equation is as follows: 1 of 5 claims (or 1/5) multiplied by 2 of the 4 Defendants (or 1/2) equals 1/10 or 0.1."]) While it could be assumed that Kokowicz would therefore request 5% of the total attorney's fees, such a scenario is not addressed in the moving papers or reply.

Accordingly, Moving Defendant's Motion for Attorney's Fees and Costs is CONTINUED to September 21, 2026. Moving Defendants may supplement its motion clarifying the fees requested on behalf of Kokowicz only. Any such supplement is due by filed and served by September 14, 2026 by 4:00 pm. Any supplemental reply thereto is due by September 17, 2026 by 4:00 pm.

IT IS SO ORDERED.

Dated: September 9, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - Plaintiff's Motion to Tax Costs is scheduled for September 21, 2026. This instant motion is for attorney's fees only.

Any party may submit on the tentative ruling by contacting the courtroom via email at SMCDept509@lacourt.ca.gov by no later than 4:00 p.m. the day before the hearing. All interested parties must be copied on the email. It should be noted that if you submit on a tentative ruling the court will still conduct a hearing if any party appears. By submitting on the tentative you have, in essence, waived your right to be present at the hearing, and you should be aware that the court may not adopt the tentative, and may issue an order which modifies the tentative ruling in whole or in part.